



U.S. DEPARTMENT of STATE

PRIVILEGED INSTRUCTIONS

UNITED STATES OF AMERICA



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Privileged Instructions

Fundamental Principles:

- Respect for human rights and self-determination.
- Resolution of disputes through adherence to established international norms, agreements, and conventions.

Desired End State(s):

- Immediate reduction in tensions throughout Jammu and Kashmir.
- Comprehensive peace agreement that ensures a stable and peaceful Jammu and Kashmir.
- Peace between India and Pakistan.
- Investigation and resolution of human rights abuses through international arbitration as well as the care and repatriation of all displaced persons.

Delegation Instructions

Ensure periodic reports, requests for further guidance, or clarifications to the instructions herein are submitted via message to the office of the Secretary of State.

PRIMARY GUIDANCE: Reducing tensions in South Asia is our primary concern. We must encourage Pakistan, China, and India to work with each other and with the Jammu & Kashmiri leaders to avoid further violence and stabilize relations between all parties. The United States should play a leading role in the negotiations by using multilateral meetings to maximize communication. Engagement and cooperation from extra-regional actors, specifically Great Britain and Russia, will be critical to concluding lasting agreements achieved by the negotiations. In keeping with this, we must also work to encourage, or as needed, compel, increased communication and cooperation between the primary parties involved: India, China, Pakistan, and the Jammu & Kashmiri leaders. We also need to hold a firm line on the issue of terrorism, as the United States strongly objects to implicit or explicit state support of militant or terrorist organizations. We must make clear to the Jammu & Kashmir, Pakistan, and India that any support or toleration of terrorist activity is unacceptable and a detriment to successful negotiations. The long history of tense relations between Pakistan and India informs their current animosity; we will need to carefully balance negotiations with the two countries to gain concessions while not alienating either nation.

Negotiations with the Jammu & Kashmir will likely revolve around the question of autonomy, and while the United States supports self-determination and democratic rule, we do not take a formal position on autonomy over accession to India or Pakistan. That being so, for the sake of creating real stability in the region, we should guide negotiations towards graduated, limited autonomy for Jammu and Kashmir as conditions allow. We support using the Line of Control (LoC) as the official international border between India and Pakistan for the basis of any future peace agreements, but also support the right of all Kashmiris to unrestricted access to all parts of the former princely state; in other words, the LoC cannot restrict the movement of all Kashmiri citizens throughout the princely state. Multiple issues will overlap during negotiations, and we should aim to use related issues as leverage to gain concessions for our major concerns.

Chapter Issues and Principal Negotiating Positions

Chapter I: Territory

Discussion:

In 1948, the UN attempted to settle the dispute in Jammu and Kashmir by creating a stalemate position along the LoC. While territorial disputes over Jammu and Kashmir resulted in war in 1947, 1965, and 1999, the status quo of the LoC as a de facto border between India and Pakistan has not changed. In the past India has indicated that it is willing to discuss the LoC as the border. The Jammu & Kashmir movement is currently most active on the Indian side of Kashmir and seeks to expand their authority; however, even within Indian-controlled Jammu and Kashmir their political clout has waned as a result of the reassertion of Indian control over local governance. Their influence on the Pakistani side, meanwhile, is growing.

Sino-Indian territorial disputes originate with the 1913 McMahon Line, which established the boundaries of British India. China views the line as illegal, while India adheres to its position. China claimed Aksai Chin and Arunachal Pradesh during the 1962 Sino-Indian War. These two territories are currently split between India and China, with both countries claiming both regions.

Our Position:

The United States supports the LoC as the official international border between India and Pakistan, but also supports an “invisible border” for all Kashmiri citizens. On further territorial disputes, the United States remains neutral to not interfere with negotiations between all entities and to ensure continued good relations with India, Pakistan and China.

Guidance:

Negotiations over the LoC are tied to issues of Kashmiri governance. Both India and Pakistan are interested in controlling all of historical Jammu and Kashmir. It is assumed that the Jammu & Kashmir will seek full autonomy for all Indian, Pakistani, and perhaps the Chinese held regions of Kashmir; however, we also support the legitimate interests of India and Pakistan. We should encourage the adoption of the LoC as the official international border between India and Pakistan, with liberal allowance of movement for all Kashmiri citizens, while seeking stability between India and China along their sparsely populated mutual frontier.

Chapter II: Jammu and Kashmir Governance

Discussion:

In 1948 the UN Security Council first called for the creation of a Jammu and Kashmir coalition cabinet and a plebiscite to decide whether the region would accede to India or Pakistan. Though the call for a plebiscite has endured throughout the last eight decades, the recent movement for full autonomy led by the Jammu & Kashmiri leaders argues for the inclusion of an autonomy proposal to the plebiscite ballot. This proposal necessitates a definition of autonomy that can resolve issues of territory and security, and governance, but also addresses and details the various concerns of the various tribe and sects that comprise the former princely state.

Our Position:

In principle, the United States supports a revision of the original UN plebiscite proposal to include limited autonomy, in alignment with our democratic values. While we actively promote the

importance of self-determination and self-governance, the US government does not formally support Kashmiri independence. Encouraging increased autonomy in alignment with democratic rule is a priority. In return for our support for Kashmiri autonomy, we should pressure all parties to prioritize security measures that deter and prevent any terrorist activity. Privately, we should also praise the Jammu & Kashmiri leaders' peaceful pursuits as an example of effective local rule that accommodates all interests.

Guidance:

The presence of a non-state actor in a multilateral negotiation for this region is unprecedented. We should encourage inclusion of the Jammu & Kashmiri delegation by addressing the issue of governance in the early rounds of negotiations. Citing the Jammu and Kashmir Water Resources Act, we can assert a precedent for positive Kashmiri self-governance. Progress on governance can facilitate positive developments on other matters, such as water rights. Additionally, we should attempt to engage parties in multilateral negotiations by emphasizing that our shared goal of regional stability can only be achieved if all actors engage in the conversation. Linking governance and terrorism concerns may serve to bring Russia to the table. However, if talks on governance do not proceed well with India and Pakistan, we should seek other methods in order to sustain the dialogue.

Red Line:

No agreement that fails to address, at minimum, limited autonomy for Jammu and Kashmir.

Chapter III: Human Rights and Displaced Persons

Discussion:

Both sides in the India-Pakistan conflict accuse each other of human rights violations while, despite a resolution and renewed efforts in regards to the delivery of humanitarian aid, hundreds of thousands of people are left to suffer in increasingly dire conditions. The UN has made clear its interest in conducting investigations into specific abuses. IDPs and refugees are another major issue, with populations fleeing the LoC border areas and flooding into India and Pakistan. Displaced persons are trapped in the city of Leh in dismal camps unable or unwilling to return to their homes.

Our Position:

Humanitarian concerns are a top priority for the United States. An international investigation into human rights abuses is necessary in order to help reduce tensions and bring resolution to some of the questions surrounding Jammu Kashmir. More immediately, parties must agree on an approach to manage displaced persons, set the conditions for and empower repatriation. This is not the time to argue over semantics of responsibility – the international community must come to the aid of those suffering in the region.

Guidance:

We should push for an international investigation into the broader human rights violations in Jammu and Kashmir. The UN is the natural vehicle for these investigations, but with India refusing to pay adequate attention to the matter, New Delhi would likely fight any external intervention into what they maintain as their internal affairs. The United States and our British colleagues should encourage India to agree to a UN investigation, and ask that Pakistan encourage China to do the same.

The vulnerable IDP populations in the region need immediate assistance. Parties must agree on a path to repatriation while sustaining physical protection and medical attention to those living in

camps. Whether IDPs or refugees, their humane treatment and protection is in the interest of all countries. Because no country wants the world to see the egregious mistreatment of refugees and IDPs in the region, the United States should seek common ground on secure repatriation while ensuring that none of these actions in any way aid insurgents or terrorists who may have embedded themselves in these displaced populations. In particular, we should exert our influence over India to reopen travel routes into the Kashmir Valley and offer protection to refugees/IDPs within India's borders.

Red Line:

Forcefully oppose any perceived intransigence on the conduct of investigations into the violations of human rights, or upon the establishment of repatriation programs within the region.